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The Civil Rights Congress and Southern Black Defendants

BY CHARLES H. MARTIN

MUCH has been written about the wave of black activism and direct action protests which developed in the American South from 1955 onward. Scholars have also detailed the persistent legal attack against discrimination waged by the National Association for the Advancement of Colored People (NAACP) after World War II. Except for a few historians of American radicalism, however, most writers have tended to overlook the existence of a left-wing legal defense organization that served as an alternative to the NAACP in the late 1940s and early 1950s: the Civil Rights Congress (CRC). Although strong on both the East and West coasts, the CRC was relatively weak in the South, where its chapters encountered substantial opposition to their mere existence. Yet the national organization still managed to conduct three of its most important and well-publicized national campaigns around southern black defendants, specifically Rosa Lee Ingram in Georgia, the Martinsville Seven in Virginia, and Willie McGee in Mississippi. Through these struggles the CRC succeeded in dramatizing continued injustice and repression against blacks in Dixie, much as the Scottsboro and Angelo Herndon cases had done in the 1930s. Yet because of the CRC's Communist ties, a particularly damning connection during the depths of the second Red Scare, the group was eventually destroyed and its civil rights activities almost forgotten.¹

¹Descriptions of the Civil Rights Congress are found in Wilson Record, *The Negro and the Communist Party* (New York, 1971), 253-62, and *Race and Radicalism: The NAACP and the Communist Party in Conflict* (Ithaca, N.Y., 1964), 151-56; David A. Shannon, *The*

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The Civil Rights Congress was formed April 27-28, 1946, at a conference in Detroit attended by over four hundred representatives of various left-wing, black, labor, and progressive organizations. At that meeting the old International Labor Defense, famous for defending the Scottsboro Boys in the 1930s, and the Michigan-based National Federation for Constitutional Liberties merged into the new organization. From the start the national leadership of the CRC included many Communist Party members and so-called fellow travelers. This extensive Communist presence eventually caused both the Committee on Un-American Activities of the U.S. House of Representatives (HUAC) and the U.S. Attorney General's office to label the group a "Communist front." Local leaders, however, were not automatically cut from the same cloth, and chapter memberships often varied in their political views and racial composition. A substantial number of CRC supporters were blacks, and, when the remnants of the National Negro Congress merged into the Civil Rights Congress in December 1947, the number of black members increased even further.²

According to the resolution establishing the CRC, the organization sought to protect the rights of labor and of racial, national, religious, and political minorities. Since the group's leaders believed that in a capitalistic society there was no such thing as neutral justice, they insisted that a dual approach combining skillful legal strategy inside the courtroom and "mass pressure" outside it was necessary in order to obtain true justice

Decline of American Communism (Chatham, N.J., 1959), 220-21, 234-35, 244; William L. Patterson, *The Man Who Cried Genocide* (New York, 1971), 156-214; Jessica Mitford, *A Fine Old Conflict* (New York, 1977), 104-38, 160-97, 255-59; Charles H. Martin, "The Civil Rights Congress and the Second Red Scare," paper presented to Organization of American Historians Convention, Los Angeles, California, April 1984. Another valuable source is the Federal Bureau of Investigation files, which contain 254 volumes of information on the CRC. Approximately 180 of these volumes have been declassified so far through this author's Freedom of Information request. All citations to FBI files refer to photocopies in the possession of the author.

²*Daily Worker*, April 5, 29, and 30, May 3, 1946; Summary of Conference on Civil Rights, Detroit, April 27-28, 1946; CRC News Release, April 28, 1946, in Civil Rights Congress Papers (Schomburg Collection, New York Public Library); Record, *The Negro and the Communist Party*, 254-55; House of Representatives, Committee on Un-American Activities, 80th Congress, "Report on Civil Rights Congress as a Communist Front Organization"; *New York Times*, December 5, 1947, p. 1. On the ILD see Charles H. Martin, "The International Labor Defense and Black America," *Labor History* 26 (Spring 1985): 165-94.

for unpopular defendants. The CRC was not a civil libertarian organization, however, for it consistently refused to defend the rights of people it labeled fascists, white supremacists, or right-wingers. The group's leaders even maintained that such individuals' activities did not merit basic constitutional protection.³

At first the CRC sponsored a variety of national activities. Protecting racial and ethnic minorities against discrimination received a high priority. Local chapters' efforts in this area included providing legal aid; exposing police brutality; helping black fugitives in the North and West avoid extradition to southern states; and protesting racially biased minstrel shows, plays, and movies such as *The Birth of a Nation*. A second area of concern (later abandoned) was lobbying in support of progressive legislation in Congress. The group endorsed various civil rights proposals including a federal anti-lynching law, demanded abolition of HUAC, and challenged the legality of the 1946 reelection of controversial Mississippi Senator Theodore G. Bilbo.⁴

The CRC also provided frequent assistance to a wide variety of individuals under investigation by HUAC or government agencies because of their radical political views. In 1948 and 1949 the CRC became well known for its activities in support of the Top Twelve Communist Party leaders (later the Top Eleven) tried in New York under the Smith Act. This campaign and subsequent ones in behalf of regional Communist leaders helped solidify the Congress's reputation as a Communist-dominated group and clouded its image as an organization dedicated to protecting and advancing the civil rights of Afro-Americans. To counter this development, the group began in 1949 to give even stronger emphasis to blacks' legal rights and anti-discrimination activities. Several aggressive and well-publicized campaigns in behalf of controversial black defendants soon attracted substantial national attention. The CRC even

³*Daily Worker*, April 30, 1946; November 24, 1947; William L. Patterson to Fred Rodell, October 17, 1951 and Patterson to Ted O. Thackrey, n.d., in CRC Papers; Record, *The Negro and the Communist Party*, 256-57.

⁴Minutes, Board of Directors Meeting, October 4, 1946, January 25, 1947; William L. Patterson, "Tasks and Perspectives of the Civil Rights Congress," March 21, 1950, in CRC Papers; *Daily Worker*, August 19, 1947; *New York Times*, December 6, 1946, p. 48; Martin, "The Civil Rights Congress and the Second Red Scare," *passim*.



As executive secretary of the Civil Rights Congress in the late 1940s and early 1950s, William L. Patterson did much to bring national attention to the organization through its more concerted involvement with black defendants. *Photo from William L. Patterson, The Man Who Cried Genocide: An Autobiography (New York: International Publishers, 1971).*

gained international notoriety in 1951 through the Willie McGee case and also through its presentation to the United Nations of a so-called “Genocide Petition” accusing federal, state, and local governments in the United States of encouraging genocide against the Afro-American people in violation of the UN’s Convention on the Prevention of Genocide.⁵

At its high point in 1950 the CRC officially claimed some sixty active chapters across the nation, and more were apparently formed during the year. The organization was strongest on the East and West coasts, although it did develop a following in several midwestern industrial cities as well. Only ten chapters, several of which proved to be short-lived, were established

⁵Rejected by the United States Senate at that time, the Genocide Convention was finally ratified in February 1986. Michal R. Belknap, *Cold War Political Justice* (Westport, Conn., 1977), 60-63, 96-97, 108, 123, 172, 188; *Daily Worker*, August 26, 1947. William L. Patterson, ed., *We Charge Genocide* (New York, 1970), is a reprint of the original petition with a new preface by the former CRC head.

in the eleven ex-Confederate states. New Orleans and Miami had fairly active local units. Additional groups functioned for a while in Atlanta, Greensboro, Richmond, Austin, Dallas, Houston, Waco, and San Antonio. No official chapter was ever formed in Mississippi, but several black residents (including Percy Green, editor of the Jackson *Advocate*) occasionally assisted CRC representatives. In other areas where there were no functioning units, the CRC sometimes exerted influence through ad hoc committees formed around a particular case. The major activities of the ten southern chapters included working on purely local issues, usually concerning racial discrimination; attempting to build mass movements around southern blacks, such as Willie McGee, whose cases had achieved national importance; and providing support for other national CRC campaigns, especially the defense of the Top Eleven. The latter activity usually proved quite damaging to local branches, since it immediately stigmatized them as Communist-influenced and frightened away prospective members.⁶

Undoubtedly the most active CRC unit in the South was the New Orleans chapter. The group was initially formed as a "Provisional Committee for Justice in the Brooks Case" at a February 28, 1948, meeting called to protest the fatal shooting of Roy Cyril Brooks, a black laborer, by a white policeman in the west bank town of Gretna. In May the committee officially changed its name to the Civil Rights Congress of Louisiana. Professor Oakley C. Johnson of Dillard University became the executive secretary, while Albert Augustine O'Brien, president of the local Food and Tobacco Workers Union—CIO, served as chairman. The New Orleans chapter successfully pressured local officials for an indictment against the officer who shot Brooks, but eventually an all-white jury acquitted the patrolman.⁷

⁶Several moderately active chapters were located in cities in border states, including St. Louis, Louisville, Baltimore, and Washington, D.C. *People's Daily World*, July 5, 1950; CRC Chapter Financial Report, 1949; Analysis of Chapter Income, 1952, in CRC Papers. In 1949 a tiny chapter of five members was also listed in the small North Carolina hamlet of Oriental.

⁷New Orleans File No. 100-13556, April 28, 1950, in FBI Files; Oakley C. Johnson, "New Orleans Story," *Centennial Review* 12 (Spring 1968): 194-212, in William L. Patterson Papers (Manuscript Department, Moorland-Spingarn Research Center, Howard University, Washington, D.C.).

The CRC next campaigned against police brutality and in favor of hiring black policemen, a practice in which New Orleans lagged behind other southern cities. Several left-wing unions including the International Longshoremen and Warehousemen's Union aided the CRC, but local NAACP officials refused to cooperate publicly with the group, thereby limiting its influence. Over the next three years the New Orleans CRC continued to concentrate almost entirely on local black affairs, with the key exception of several actions in support of the eleven Smith Act defendants. In 1950 and 1951 the group devoted considerable time to the murder case of Paul Washington and Ocie Jugger and the rape case of Edward Honeycutt, potentially important campaigns which failed to receive much national recognition because of the CRC's declining health. After chapter president Oakley Johnson failed to have his teaching contract renewed for the fall semester of 1951, he moved away, and the chapter eventually folded.⁸

Although it did not match the New Orleans unit's energy, the CRC chapter in Miami briefly gained a moderate community following. The group was formed in May 1948 around the defense of Leah Adler Benemovsky, a former officer in the local Communist party, who had been convicted of contempt for her failure to answer questions before a local grand jury investigating Communism. Victor Emanuel, a veteran left-winger, served as president of the group, while Foster Robinson, a black laborer purported to be a member of the Communist party, was elected as vice president. During its first ten months the CRC backed the defense campaign of the Top Eleven in New York, crusaded against police brutality, and urged the state legislature to outlaw the Ku Klux Klan.⁹

In March 1949 national director Leonard H. Goldsmith traveled to the city to participate in a membership and fund-raising drive. Over five hundred residents attended the public

⁸Louisiana *Weekly*, May 12, June 9, 1951; New Orleans File No. 100-13556, April 28, 1950, in FBI Files; Johnson, "New Orleans Story," 212-19. During June 1949, CRC representatives picketed the Federal Building and the Post Office protesting the Foley Square trial.

⁹Miami File 100-10432, November 30, 1948; September 21, 1949, in FBI Files; Bella Fisher to CRC, December 16, 1948, in CRC Papers; Leon Weiner to Len Goldsmith, January 10, 1949, in Patterson Papers.

meeting featuring Goldsmith, as did a reporter and a photographer for the *Miami Daily News*. In its Sunday, March 6, issue the newspaper devoted an entire page, complete with ten photographs, to the rally, which it described as a Communist fund-raiser thinly disguised through a “front group.” The *Daily News* continued its hard-hitting attacks on the CRC during the following week and created a brief “red scare.” As a result, many members resigned, including chapter president Victor Emanuel, who denounced the CRC as “definitely under suspicion of subversive intent and Communist domination.” Such intense public hostility forced the group to cease operations for several months. Although the chapter revived the following year, it remained weak and ineffective.¹⁰

While Louisiana and Florida could produce only one chapter each, Texas surprisingly contained the largest number of CRC chapters found in any southern state, with five branches functioning in Houston, Dallas, Waco, Austin, and San Antonio. After the founding meeting of the CRC in Detroit in April 1946, Texas delegates returned home and set to work. On June 9 the Civil Rights Congress for Texas was formed at a meeting in Houston. Elected as state officers were honorary chairman J. Frank Dobie, an Austin professor; co-chairman Lulu White, executive secretary of the Houston NAACP branch; and executive secretary Sylvia Bernard from San Antonio. Efforts were then launched to establish local chapters across the state.¹¹

The key figure in the Houston chapter at first was Lulu White, who temporarily granted the CRC access to the local NAACP office. For the most part the Houston unit worked on joint projects such as voter registration with groups like the Young Democrats and the Progressive party. After White dropped out in 1948, the group became inactive until February 1949, when it was reorganized following the visit of Leonard Goldsmith, national director of the CRC. Morris Bogdanow, an attorney who represented the Communist party locally, became

¹⁰*Miami Daily News*, March 4, 6-9, and 16 (quotation), April 12, 1949; *Miami Herald*, March 5, 8, 9, 17, and 19, 1949; Leon Weiner to CRC, March 15, 1949, in Patterson Papers.

¹¹Dobie apparently never directly participated in any CRC activities. San Antonio File 100-7205, June 18, 1946; Houston File 100-7645, July 11, 1946, in FBI Files.

the chairman. The chapter undertook several activities in support of the Top Eleven but eventually shifted to an emphasis on black civil rights, especially the issue of police brutality. After an August 1950 state conference in Austin, the state office was moved to Dallas—acknowledgment of the collapse of CRC activity in Houston.¹² In Dallas the local group was only sporadically active until October 1949, when Howard Limerick and the Reverend R. H. Harris, a black minister who later became the state chairman, revived its fortunes. The Dallas chapter frequently attacked the U.S. Immigration and Naturalization Service, which initiated deportation proceedings against several resident aliens in the area who were members of the Communist party. Later in 1950 the local group became active in the Willie McGee campaign and also in work against police brutality, but by the end of the year it too had disbanded.¹³

A CRC chapter functioned for several years in the central Texas town of Waco. Ira V. Dixon, a former officer in the local NAACP branch and the proprietor of a small cafe, singlehandedly established the all-black group, apparently as an alternative to the NAACP. Dixon claimed that at one time his chapter had 110 members, although a 1949 CRC financial report listed only thirty-seven whose dues were paid. The San Antonio FBI office, the Waco police chief, and a group of white employers who were worried about black workers' interest in civil rights and labor unions investigated the group and warned several local black ministers about its alleged Communist ties. Although they maintained that Dixon's group was an indigenous movement, black leaders cautiously withdrew their support from the chapter, which was crippled as a result. In Austin a local chapter composed mostly of black and white college students existed for a while in 1947 and again in 1950 but was unable to sustain itself. Little is known about the fifth Texas

¹²Houston File 100-7645, July 11, September 30, 1946; February 28, December 9, 1947; January 12, August 13, 1951; March 3, 1952, in FBI Files. For a survey of left-wing activities in Houston during that period, see Don E. Carleton, *Red Scare! Right Wing Hysteria, Fifties Fanaticism and Their Legacy in Texas* (Austin, 1985), 42-67.

¹³Dallas File 100-7980, June 1948; June 7, October 4, 1950; February 17, April 14, November 15, 1951, in FBI Files.

MOTHER'S DAY CARD • MAY 14, 1950



MRS. ROSA LEE INGRAM, now 42, is a mother of fourteen children (two dead) and a widow since August, 1947, when her 64 year-old husband died. May 14, 1950, will be the third Mother's Day Mrs. Ingram has been in prison with her two young sons. This mother is in prison because she defended her honor and her home. The sons are in prison because they defended their mother.

On Mother's Day—May 14, 1950—we honor and revere this widowed sharecropper and mother of fourteen children for her dignity and courage. Make 1950 Freedom Year for Mrs. Ingram and her two sons.

*Issued by the National Committee to Free the Ingram Family
Hotel Theresa, 125th St. & 7th Ave., Room 108, New York*



Dear Mr. President:

On this Mother's Day, May 14, 1950, we fervently hope you will proclaim Freedom for Mrs. Rosa Lee Ingram and her two sons who have been in a Georgia prison since November 4, 1947.

Declarations of Human Rights and the observance of Mother's Day have no meaning as long as an innocent mother remains in prison.

A Proclamation of Freedom for Mrs. Ingram will be a genuine Mother's Day greeting for all mothers and will resound throughout the world.

Sincerely yours,

Name
Address
City..... Zone..... State.....

STAMP

The Honorable Harry S. Truman

President of the United States

White House

Washington, D. C.

Rosa Lee Ingram's case was the first nationwide campaign mounted by the Civil Rights Congress for a black defendant. The widow of a sharecropper in southwest Georgia, she was accused of the murder of a white neighbor. This "Mother's Day Card" (both sides shown here) was part of a nationwide publicity campaign to win the release of Mrs. Ingram and her children from prison. *Card courtesy of the author.*

chapter in San Antonio, which apparently functioned for only a few months.¹⁴

In the Southeast the CRC used the temporary excitement created by prominent local cases in Atlanta and Richmond as a springboard for the creation of new chapters in both communities. But these two units, and a third in Greensboro, encountered strong community opposition and never developed into effective groups. Despite these organizational setbacks, CRC leaders remained determined to challenge the pervasive racism in Dixie. In fact it was in the South, ironically, that the national organization obtained three of its four most important and famous black cases, cases on which the CRC staked its reputation. After the selection of William L. Patterson as national secretary in the summer of 1948, the organization increasingly stressed Afro-American issues, primarily the defense of southern blacks felt to be unjustly prosecuted. Since he had directed the International Labor Defense during the mid-1930s, Patterson was well aware of the benefits that had accrued to that group and also to the Communist party as a result of the Scottsboro case. Apparently he now hoped to recreate that result for the CRC. Under Patterson's leadership the CRC gained growing national prominence in 1950 and 1951 through its aggressive legal defense activities in several controversial cases. In addition to the case of the Trenton Six in New Jersey, the other major black campaigns revolved around southern defendants Rosa Lee Ingram in Georgia, the Martinsville Seven in Virginia, and Willie McGee in Mississippi. The CRC eventually built these campaigns into symbolic struggles challenging unequal treatment of blacks in southern courts, especially the disproportionate use of the death penalty against blacks convicted of rape.

The Ingram affair was the first black case elevated to national status by the CRC, even though the group never officially represented the Ingram family in court. The case began on November 4, 1947, when Rosa Lee Ingram, a forty-year-old black sharecropper and head of a family of twelve children,

¹⁴San Antonio File 100-7205, November 13, 1946; May 7, 1947; January 23, 1948; November 8, 1950, in FBI Files; R. D. Dixon to CRC, April 1951; Financial Report, 1949, in CRC Papers.

was arrested following the death of a white sharecropper in southwest Georgia, some fifteen miles north of Americus. According to early reports, John Ethron Stratford, a sixty-four-year-old neighbor, had confronted Mrs. Ingram with a rifle upon discovering livestock in his cornfield. A fight between the two, joined by Mrs. Ingram's sons, had ensued. Local authorities immediately arrested the Ingrams and placed them in separate jails. At a one-day trial held in Ellaville, Georgia, on January 26, 1948, Mrs. Ingram, her sons Wallace, sixteen, and Sammie Lee, fourteen, all contended that she had merely defended herself against an armed attacker and that the two teenagers had simply come to her aid. The prosecution argued, however, that there had actually been two rounds of fighting over a hundred yards apart and that circumstantial evidence (there were no outside witnesses) such as footprints in the dust indicated that Stratford had been killed in the second encounter. After the all-white, all-male jury returned a murder conviction with no recommendation of mercy, presiding Judge W. M. Harper sentenced the three Ingrams to be executed.¹⁵

As news of the convictions and death sentences reached Atlanta and then the North, numerous individuals and organizations indignantly rallied to the family's defense. The Pittsburgh *Courier* made the case into a regular front-page feature and widely publicized the severity of the sentences. In mid-February 1948, the national office of the NAACP received Mrs. Ingram's permission to join her defense and promptly provided an attorney to assist the court-appointed white lawyer in preparing a petition for a new trial. Although Judge Harper subsequently denied this request, he exercised his discretion under Georgia law and commuted the three death sentences to life imprisonment. Nonetheless, Thurgood Marshall, director of the NAACP Legal Defense and Education Fund, announced that the conviction would definitely be appealed to the state supreme court and that the fight to free the Ingrams had "just

¹⁵*Ingram v. State*, 48 S.E.2d 891; *Ingram v. State*, transcript of trial and appeal file (Georgia State Archives, Atlanta, Georgia); *Atlanta Daily World*, November 7, 1947; *Atlanta Constitution*, November 5, 1947; *Ellaville Sun*, November 7 and 14, 1947; January 30, 1948; *Americus Times-Recorder*, November 5, 11 and 26, December 2, 1947.

begun.” The *Daily Worker* also extensively publicized the Ingrams’ convictions, terming the case “the new Scottsboro.”¹⁶

The importance of the Scottsboro analogy could not be overlooked by CRC leaders, and on February 25, 1948, the national executive committee voted to adopt the case. Although the organization was unable to secure Mrs. Ingram’s permission to replace the NAACP as her legal counsel, it nonetheless began to hold rallies publicizing her conviction and condemning the sentence. Impressed by the enthusiastic response, William L. Patterson declared on April 5 that the case had “opened many doors” for the CRC and was fast becoming “the most important issue of the struggle for Negro rights since Scottsboro.” Patterson also warned that since the “bourgeois” NAACP would inevitably shrink from aggressive action and eventually abandon the Ingrams, it was the CRC’s duty to intensify its campaign and alert Americans as well as foreigners to the tremendous abuse of justice the case represented.¹⁷

As part of its expanding Ingram campaign, the CRC held numerous rallies in black churches across the North and widely distributed copies of a pamphlet on the affair. The organization also sent several representatives to Georgia to investigate the case and attend the appeal hearings. At the same time the CRC unsuccessfully urged the U.S. Department of Justice to intervene in the proceedings. The group’s supporters sent numerous letters and telegrams to Georgia officials criticizing the convictions and demanding safe treatment for the prisoners, thereby alarming NAACP officials who feared that such “outside” complaints might make matters worse for the Ingrams. The CRC also raised some modest funds for immediate relief of the remaining Ingram children, who were being cared for by their eldest sister, while its Prisoners’ Relief Fund began

¹⁶Pittsburgh *Courier*, February 7, 14, 21, and 28, March 13, April 3, 1948; *Daily Worker*, February 20 (second quotation), April 8 (first quotation), 1948; Atlanta *Daily World*, February 3-5, 11, and 17, March 26, April 7, 1948; Savannah *Tribune*, May 6, 1949; Emil Willmetz, “Justice Sleeps: The Ingram Case,” *Crisis* 55 (May, 1949): 141.

¹⁷Minutes of Executive Committee Meeting, February 25, 1948; William L. Patterson to Joseph Cadden, April 5, 1948 (quotation), in CRC Papers; *Daily Worker*, February 13, 16, 20, and 22, March 23 and 26, April 4, 7, and 8, 1948. For additional details on the NAACP-CRC struggle over the case, see Charles H. Martin, “Race, Gender, and Southern Justice: The Rosa Lee Ingram Case,” *American Journal of Legal History* 29 (July 1985): 251-68.



The National Committee to Free the Ingram Family, which produced the Mother's Day Card, also printed and distributed this pamphlet. The committee's stated aim was "to use the pulpit, press, radio, and every other means of communication to tell the Ingram story to the world." *Pamphlet courtesy of the author.*

regularly sending the family a small monthly stipend. Though undoubtedly useful, such assistance was modest indeed when compared to the nearly \$46,000 raised from a sympathetic public by the *Pittsburgh Courier* and the NAACP in an extensive national campaign. Hoping to use the case to revitalize its faltering chapter growth in the South, the CRC succeeded in forming an Atlanta unit in February 1949 at a meeting in the Big Bethel Church. But the NAACP and other local black groups had already preempted local interest in the case, and the chapter eventually folded, leaving the CRC with few local contacts.¹⁸

After the Georgia Supreme Court upheld the convictions and sentences in July 1948, the NAACP legal staff reluctantly concluded that further appeals would be futile. Therefore NAACP tactics shifted to an attempt to obtain a pardon or

¹⁸The NAACP eventually built a new home for the Ingrams with the funds. *Daily Worker*, February 24, March 8, 11, 17, 19, 21, 22, 26, and 29, April 4-8, 1948; *Atlanta Daily World*, February 12 and 22, March 5, 7, 21, and 23, April 8, July 18, December 23, 1948; April 2, July 7, 10, and 12, 1949; *Pittsburgh Courier*, January 1 and 29, 1949; *Crisis* 55 (April 1948), 123; Atlanta File No. 100-4014, March 11, April 28, June 3, 1949, in FBI Files; Leon Weiner to Len Goldsmith, January 31, 1949; Weiner to William L. Patterson, February 17, 1949, in Patterson Papers.

parole through a quiet, behind-the-scenes approach to state officials. This strategy disturbed the CRC, which felt that only by maintaining constant public pressure on Georgia officials would the Ingrams ever be freed. In order to advance that goal and to emphasize the Ingram case as a woman's issue, the CRC helped set up a "united front" committee, the National Committee to Free the Ingram Family, on March 21, 1949. The group, which later changed its name to the Women's Committee for Equal Justice, promptly began a series of projects to aid Mrs. Ingram. In April 1949 a delegation of northern women visited Mrs. Ingram at a work farm to check on her health and express their support. Complaining that continued visitors, telegrams, and long-distance telephone calls had disrupted the facility's normal operation, prison officials soon moved her to another location. In September the National Committee presented a special petition, drafted by W. E. B. DuBois, to the Social and Economic Council of the United Nations protesting her sentence and the treatment of blacks in Georgia. Such publicity even prompted inquiries from a woman's organization in Yugoslavia and occasionally from other foreign groups.¹⁹

During the following years, the committee regularly held Ingram rallies on Mother's Day and repeatedly deposited petitions with the U.S. Justice Department and the White House calling for federal intervention. In January 1952 an interracial delegation attended a parole hearing for Mrs. Ingram in Atlanta to press for her early release. On Christmas Day at the end of the year, another northern delegation visited Georgia and attempted to see Mrs. Ingram at the state prison at Reidsville, but state highway patrolmen stopped the group just outside the facility. Led by Mary Church Terrell, the distinguished civil rights activist from Washington, D.C., yet another delegation attended the annual parole hearing in December 1953 and held a short prayer meeting at the state capital. Deter-

¹⁹CRC *Newsletter*, September 1950, in CRC Papers; *Atlanta Daily World*, February 6 and 10, April 8, 17, and 26, May 26, June 2, August 17, September 16, 1949; *Pittsburg Courier*, October 1, 1949; W. E. B. DuBois, *Against Racism: Unpublished Essays, Papers, Addresses, 1887-1961*, ed. Herbert Aptheker (Amherst, Mass., 1985), 261-65; American Embassy, Belgrade, to Department of State, September 30, 1949, Durward V. Sandifer to Department of Justice, October 19, 1949, in Race Relations Decimal File, Records of the Department of State, Record Group 59 (National Archives, Washington, D.C.)

mined to prevent the public from forgetting Mrs. Ingram, a delegation representing the Women's Committee for Equal Justice, the Ingram Committee's successor, presented a petition in April 1954 to the U.N. Commission on the Status of Women, charging that Mrs. Ingram's human rights had been violated. The following month some fifty women staged a Mother's Day pilgrimage to Georgia, and two members were actually permitted to visit Mrs. Ingram. In 1955 the Committee again visited the Justice Department to press for federal action, but it skipped the annual parole hearing. When the CRC disbanded the following year, the Women's Committee soon followed suit. The halt of such visits pleased NAACP executive secretary Roy Wilkins, who assured a friend that while such protests "reveal[ed] national indignation" they accomplished nothing, because state pardon and parole board members were "absolutely immune to pressures which come from outside the state." Despite a quieter atmosphere and continued discreet lobbying by local black leaders, the pardon and parole board moved quite slowly. The Ingrams were not released until August 26, 1959.²⁰

In the CRC's next major national campaign, the case of the Martinsville Seven, the organization again did not officially represent the defendants in court, but the group still managed to play a major role in the public controversy surrounding the case. The affair began on the evening of January 8, 1949, in the small southern Virginia town of Martinsville, when a thirty-two-year-old white woman, Mrs. Ruby Stroud Floyd, reported to authorities that she had been raped repeatedly by a "squad" of Negroes. Police responded with a massive search of the black community and announced a few days later that seven black men had been arrested and had already signed confessions to the crime. In late April and early May the "Martinsville Seven," as the group came to be known, were convicted in rapid succession and each given the death sentence. The large number of defendants involved, the assembly-line manner in which the

²⁰*Daily Worker*, January 31, February 24, December 25-29, 1952; March 28, April 29, May 5 and 14, 1954; *Atlanta Daily World*, December 24-27, 1952; December 18 and 19, 1953; May 11-13, 1954; August 27-29, 1959; *Pittsburgh Courier*, September 5, 1959; *New York Times*, December 27, 1952, p. 4; May 11, 1954, p. 9; Roy Wilkins to Charles D. Wherry, August 3, 1955 (quotation), in *National Association for the Advancement of Colored People Papers* (Library of Congress, Washington, D.C.).

trials were held, and the severity of the sentences shocked Virginia blacks. Despite fears that many if not all of the defendants were indeed guilty, local blacks promptly set out to raise money for an appeal. Alerted by a New York *Times* article describing the convictions and struck by the obvious similarity to the Scottsboro case, both the NAACP and the CRC responded immediately.²¹

Following a brief investigation, the Virginia Conference of NAACP branches voted on May 13, 1949, to accept the cases and appointed Richmond attorney Martin A. Martin to direct the appeal. But in early June the CRC announced that it would represent Francis DeSales Grayson, one of the Seven, and throw its "full weight" behind the defense. During a visit to Richmond later in the month, William L. Patterson declared that the CRC would wage a vigorous fight in behalf of the Seven, just as the International Labor Defense had done for the Scottsboro Boys. But Martin A. Martin replied that the NAACP would not be associated with any organization classified by the attorney general as subversive, although he offered to defend the other six prisoners if the CRC took only Grayson's case. Having failed to convince the remaining six to switch their loyalty to his organization, Patterson subsequently agreed to Martin's proposal. However, the NAACP national office vetoed the compromise and insisted that it must defend all seven or none at all. On July 9 the CRC capitulated for the moment and announced that it was withdrawing from the legal proceedings, thus leaving the cases exclusively in the hands of the Association.²²

Martin A. Martin and several other attorneys promptly set to work on an appeal to the Virginia Supreme Court of Appeals. In the first week of January, 1950, Martin presented his arguments before the court, contending that the presiding judge erred in not granting a change of venue and in admitting signed confessions which several of the defendants had re-

²¹*Hampton v. Commonwealth*, 58 S.E.2d 288; New York *Times*, May 4, 1949, p. 23; Pittsburgh *Courier*, May 7 and 14, 1949; Richmond *Afro-American*, August 26, 1950; CRC Fact Sheet, "The Case of the Martinsville Seven," n.d., in CRC Papers.

²²Richmond *News Leader*, June 14, 1949; Richmond *Times-Dispatch*, June 14, 1949; Atlanta *Daily World*, June 18 (quotation), July 10, 1949; Pittsburgh *Courier*, May 21, June 4 and 25, 1949; CRC News Release, June 16, 1950, in CRC Papers.

puddied in court. On March 13, though, the state court unanimously upheld the convictions. The legal staff immediately filed a petition for a hearing with the U.S. Supreme Court, but on June 5, 1950, the high court declined to review the case. While NAACP attorneys filed for a rehearing, thereby once more postponing the scheduled execution dates, the CRC became more active in the case. After the state court ruling in March, the CRC had warned that the NAACP's failure to organize mass action was endangering the Seven. In June the CRC stepped up its mass defense campaign and began linking the fate of the Martinsville Seven to that of Willie McGee in Mississippi, whose scheduled execution was also approaching.²³

Two days after the high court rejection, William L. Patterson wrote Roy Wilkins of the NAACP urging a joint effort to save the Seven. When Wilkins rebuffed the offer, the CRC went ahead with its own plans. Following a national executive board conference in mid-June, the CRC announced that it was launching a national campaign to defend constitutional rights for minority political groups and blacks. The specific cases to be emphasized were those of the Top Eleven, Martinsville Seven, Trenton Six, and Willie McGee. The group also announced that an extensive membership drive would accompany the campaign. On August 22 the CRC assisted in the formation of a united front committee, the Virginia Committee to Save the Martinsville Seven, which helped develop support for the condemned men inside the state. The CRC also hired several private investigators to verify the testimony used to convict the Seven. As a result of this campaign, Virginia officials began to receive increasing numbers of telegrams and petitions, including some from overseas, urging clemency for the men. This foreign interest increased in the fall after William L. Patterson toured western Europe.²⁴

While the CRC was developing its national campaign, NAACP representatives and black civic leaders privately ap-

²³*Hampton v. Commonwealth*, 58 S.E.2d 288; *Hampton v. Commonwealth*, 339 U.S. 989; *New York Times*, September 7, 1949, p. 35; March 14, 1950, p. 15; June 6, 1950, p. 18; *Richmond Afro-American*, September 10, 1949; January 14, 1950; *Pittsburgh Courier*, January 21, March 18, April 15, June 17, 1950; *Daily Worker*, June 12, 1950; CRC News Release, March 14, June 16, 1950, in CRC Papers.

²⁴CRC News Release, July 12, November 5, 1950; William L. Patterson to Roy Wilkins, June 7, 1950, in CRC Papers; *Daily Worker*, June 12 and 14, August 23, 1950.

pealed to new Virginia governor John S. Battle to commute the death sentences to life imprisonment. But on July 24, 1950, the governor announced that he would let the sentences stand. At this point the NAACP, perhaps feeling pressured by the CRC's militancy, grew bolder and introduced a dramatic issue on which the Southern Conference Education Fund, the CRC, and the Association had all been collecting statistics—the disproportionate and discriminatory use of the death penalty in the South against black defendants. Shortly before another scheduled round of execution dates drew near, NAACP attorneys filed a petition for a writ of habeas corpus with a state district court. This brief charged that the Virginia death penalty was unconstitutional because it was applied in rape cases solely against blacks. According to the data eventually presented by NAACP lawyers, the antebellum legal code of Virginia had set death as the maximum penalty for a Negro convicted of raping a white woman, while the most severe punishment for a white man convicted of raping a white woman was twenty years in prison. Although this law had been modified after emancipation, records showed that no white man had ever been executed for rape in Virginia. On the other hand, fifty-three Negro men had been sentenced to death in the state for rape since 1908 and forty-four actually executed. In October, 1950, however, the state court rejected the petition, as did the Virginia Supreme Court of Appeals the following month.²⁵

The court rejections disappointed NAACP attorneys and added a sense of urgency to the CRC's mass campaign. The Virginia Committee to Save the Martinsville Seven declared that the district judge's ruling demonstrated the lack of justice for colored people in Virginia by revealing a "double standard" in rape cases. CRC spokesman termed the whole affair a "legal lynching" and announced that a "National Crusade Delegation" would visit Governor Battle to plead for a stay of execution. Before the delegation's departure, Battle granted a reprieve,

²⁵One white man had actually been sentenced to death, but the sentence was later commuted to life imprisonment. *New York Times*, July 25, 1950, p. 23; November 4, 1950, p. 34; *Pittsburgh Courier*, July 15 and 29, August 5, September 23, October 7, November 11, 1950; *Daily Worker*, October 9, 1950; Joint Petition on Behalf of Prisoners, n.d., in CRC Papers. On Battle's role, see Peter Ros Henriques, "John S. Battle and Virginia Politics: 1948-1953" (Ph.D. diss., University of Virginia, 1971), 177-87.



William Patterson marched in a Washington, D. C. picket line for the “Martinsville Seven” early in 1951. He was accompanied by Josephine Grayson, the wife of defendant Francis Grayson, and one of the Graysons’ young daughters. *Photo from Patterson, The Man Who Cried Genocide (New York: International Publishers, 1971).*

forcing the cancellation of the scheduled demonstration and delighting NAACP representatives, who had already attacked the trip as “the work of those whose interest lies only in espousing their political philosophy.” NAACP spokespersons also quickly ridiculed CRC claims that the proposed visit had forced the governor to grant the delay. During the fall, while these legal maneuvers were in progress, both the NAACP and the Virginia Committee had sponsored rallies in behalf of the Seven in several Virginia towns. Suspicious of fund-raising by the CRC or affiliated groups, the NAACP demanded that all organizations halt any soliciting in the name of the defendants and channel all funds through the NAACP itself.²⁶

On January 2, 1951, the U.S. Supreme Court once more refused to hear an appeal, and new execution dates were set for early February. The high court’s action galvanized the CRC and the Virginia Committee into high gear. The CRC an-

²⁶New York *Times*, November 10, 1950, p. 32; November 11, 1950, p. 9; Richmond *Afro-American*, September 9, October 14, November 11, 1950; Pittsburgh *Courier*, November 18 (quotation), December 2, 1950; CRC News Release, November 6, 1950; CRC Fact Sheet, “The Case of the Martinsville Seven,” n.d., in CRC Papers.

nounced a special petition campaign designed to obtain some 100,000 signatures on petitions calling for clemency. Stacks of letters, post cards, and telegrams, including numerous communications from groups in western and eastern European countries, began pouring into Richmond. William L. Patterson announced that a caravan of sympathizers would visit Richmond on the eve of the executions. As the dates drew near, attorney Martin made unsuccessful appeals to a federal district judge and several members of the Supreme Court to issue a stay of execution. Meanwhile, in Washington, D.C., a CRC delegation visited the Justice Department to urge federal intervention and then in front of the White House set up a picket line, which it maintained for the next few days despite snow, sleet, and extremely frigid weather. Josephine Grayson, wife of one of the prisoners, her five children, and William L. Patterson eventually joined the group. In Richmond several hundred demonstrators held rallies while a few representatives, along with NAACP attorneys, met privately with Governor Battle, who still refused to commute the sentences. Led by several ministers, a small group held a prayer vigil at the state capitol the night before the first execution.²⁷

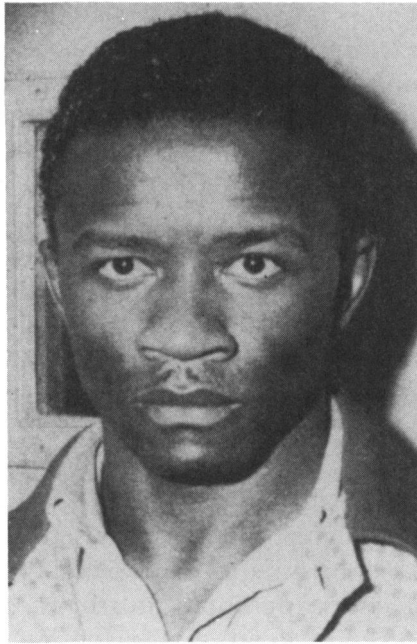
Despite these protests, public rallies in several American cities, and a last-minute appeal to Supreme Court Chief Justice Fred M. Vinson, four of the prisoners were executed on February 2 and the remaining three on February 5. The multiple deaths in the state's electric chair bitterly disappointed the Seven's supporters. The NAACP wired a strongly worded protest to Governor Battle charging that the incident "graphically exposes the inequality of sentences imposed upon Negro and white defendants in your state." William L. Patterson of the CRC issued a statement charging that the deaths had exposed "the conspiracy of every branch of state and federal government to destroy utterly the constitutional liberties and human rights of Negro Americans." In the midst of this gloomy pic-

²⁷*Hampton v. Smyth*, 340 U.S. 914; Richmond *Afro-American*, January 6, 13, and 27, February 3, 1951; New York *Times*, January 3, 1951, p. 18; January 31, 1951, p. 17; February 2, 1951, p. 29; *Daily Worker*, January 3, 12, 22, 29-31, February 1-6, 1951; William Mandel, "Vigil in Richmond," *Jewish Life*, April 1951, in CRC Papers. Over two hundred letters, telegrams, and petitions protesting the death sentences have been preserved in the John Stewart Battle Papers, Box 115, Virginia State Library, Richmond, Virginia.

ture, several observers noted an additional disquieting thought: the presence of Communists or individuals believed to be sympathetic to Communism in the defense campaign might have increased hostility on the part of Virginia officials. As columnist J. A. Rogers explained in the *Pittsburgh Courier*, "Hysteria against Communism and hysteria against Negroes have united." Rogers went on to express another idea which was gradually emerging from the Martinsville Seven and Willie McGee campaigns—that "some Federal reform in the death penalty is a necessity."²⁸

The themes developed in the course of the Martinsville Seven campaign, especially the discriminatory use of the death penalty against blacks convicted of rape, were likewise utilized in the Willie McGee affair, which proved to be the most sensational case adopted by the CRC. Willie McGee was a black truck driver in his early thirties who was accused of raping a white housewife in Laurel, Mississippi, in November 1945. Defended by two reluctant court-appointed attorneys, McGee was convicted and sentenced to death at a hasty one-day trial on December 6, 1945, in the heavily guarded Laurel courthouse. According to the *Jackson Clarion Ledger*, the jury of twelve white men took only two-and-a-half minutes to reach its decision. The National Federation for Constitutional Liberties came to McGee's aid and successfully appealed the conviction, arguing that the trial judge should have granted a change of venue. When the National Federation merged into the CRC in April 1946, the CRC inherited the case. McGee was tried for a second time in nearby Hattiesburg in November 1946. Dixon L. Pyles, a young white Mississippi lawyer, conducted a vigorous defense, but an all-white jury needed only eleven minutes to convict McGee and sentence him to death. Once more the Missis-

²⁸Executed on February 2 were Joe H. Hampton, Howard Hairston, Booker T. Milner, and Frank Hairston. Executed on February 5 were John C. Taylor, James L. Hairston, and Francis DeSales Grayson. *Richmond Afro-American*, February 10, 1951; Report of Executive Secretary for January 1951 (first quotation), in NAACP Papers; *New York Times*, February 2, 1951, p. 29; February 5, 1951, p. 40; February 6, 1951, p. 36; *CRC Chapter Bulletin*, February 12, 1951 (second quotation), in CRC Papers; *Norfolk Journal and Guide*, February 10, March 31, 1951; *Pittsburgh Courier*, February 10, 24 (third quotation), 1951. Battle apparently considered clemency for two of the men but decided against such an action because it was difficult to distinguish clearly between each man's culpability and because it might appear that he had yielded to outside pressure. See Henriques, "John S. Battle and Virginia Politics," 185-87.



Willie McGee, the Mississippi truck driver who became the center of the most sensational case taken on by the Civil Rights Congress. *Photo from Time magazine, May 14, 1951. Copyright 1951 Time Inc. All rights reserved. Reprinted by permission from Time.*

Mississippi Supreme Court overturned the conviction, citing the exclusion of blacks from local juries. At a third trial in March 1948 in Laurel, John R. Poole, a young white attorney just out of law school, represented McGee, but an all-white jury again found the defendant guilty and sentenced him to death. This time the state supreme court upheld the conviction.²⁹

In early 1949, as the first of what would be several scheduled execution dates for McGee approached, the CRC launched a mass defense campaign, which it enlarged and intensified in the spring of 1950 when another execution date neared. As part of this “Save Willie McGee” campaign, the

²⁹*McGee v. State*, 26 So.2d 680; *McGee v. State*, 33 So.2d 843; *McGee v. State*, 40 So.2d 160; *Laurel Leader Call*, November 3 and 5, December 3, 6-7, 1945; March 5-8, 1948; *Daily Worker*, December 12, 1945; *Jackson Clarion Ledger*, December 7, 1945; *Jackson Daily News*, November 14, 1946; New Orleans File 100-13556, August 16, 1950, in FBI Files.

group and its supporters sent literally thousands of post cards, letters, telegrams, and petitions to Mississippi officials urging clemency. These protests frequently linked McGee's case to that of the Martinsville Seven. A national delegation of McGee sympathizers traveled to Jackson in July 1950 for a meeting with Governor Fielding L. Wright, a Dixiecrat, and Chief Justice Harvey McGehee. After the emotion-charged conference degenerated into a shouting match and broke up, one delegate was later assaulted at his hotel, and several others were roughed up or threatened as they left the city. The delegation's visit infuriated many local whites, including editor Frederick Sullens of the Jackson *Daily News*, who labeled it "an invasion" by "very undesirable persons" who were "just as much enemies of the United States government as are soldiers fighting under the Communist banner in Korea." In Laurel some three hundred white residents held an impromptu mass meeting at the county courthouse the following week to express their disgust at the delegation's trip and the repeated delays in McGee's scheduled execution.³⁰

Refusing to be intimidated by this bitter opposition, the CRC nonetheless intensified its efforts during the first four months of 1951. As a result, numerous individuals in many foreign countries, especially France, made inquiries about the affair. In fact, American embassies overseas received so many queries about the case that the U.S. Information Service even prepared a report for foreign distribution. Early in the year the CRC released the findings of its study of capital punishment in Mississippi, which showed that no white man had ever been executed for rape in the state. Next the CRC finally revealed McGee's private contention that he had carried on a secret sexual relationship with the woman he was accused of having raped and that the rape had never occurred. These defense activities further angered Mississippi officials. Shortly after the U.S. Supreme Court announced in January that it would not review the case, Governor Fielding Wright publicly

³⁰On July 22 the still angry Sullens wrote, "I can see no difference between a Communist killing American soldiers in Korea and Communists seeking to thwart justice in Mississippi." Jackson *Daily News*, July 17-22 (quotation on July 19), 27, August 11, 1950; CRC News Release, June 30, 1950; New York *Times*, July 20, 1950, p. 27; July 25, 1950, p. 23; July 26, 1950, p. 50.

declared that he would neither grant McGee executive clemency nor hold further hearings on the matter. Complaining that he had received over eleven hundred letters and telegrams concerning the case during the previous summer, the governor warned McGee's "would-be benefactors" that they "might as well save their money on telegrams or any other type of activity directed to influence me in the case."³¹

Hoping to develop local support for McGee as a May execution date approached, a CRC women's delegation that included future author Jessica Mitford visited Mississippi in March. In early May another women's group attempted to stage a rally at the state capitol, but forty-three protesters were promptly arrested by local police. Although the women were soon released and permitted to leave town, the mass arrest also disrupted plans by several black ministers to hold a prayer vigil at the capitol modeled after the one held in Richmond for the Martinsville Seven. On the evening of the scheduled execution, over one hundred pickets marched in front of the White House in Washington urging President Harry S. Truman to halt the execution. CRC attorneys Bella Abzug, John Cox, and Emmanuel Bloch (the defense attorney for Julius and Ethel Rosenberg) filed several unsuccessful last-minute requests with state and federal judges. Despite these desperate legal maneuvers and the CRC's worldwide protest campaign, Willie McGee died shortly after midnight on May 8, 1951, in a portable electric chair in Laurel. Nearly one hundred residents, including the husband and several relatives of the alleged victim, viewed the execution in the same courtroom where McGee had first been convicted. An orderly crowd of about five hundred whites waiting on the courthouse lawn cheered when undertakers removed McGee's body.³²

³¹Bella S. Abzug and John Coe to Tom Elliston, May 2, 1951; Statement of Willie McGee, February 3, 1951, in CRC Papers; New York *Times*, January 18, 1951, p. 10 (quotation); March 27, 1951, p. 20; Herbert F. Propps to State Department, April 4, May 1, July 10, 1951, London Post Files, RG 84, State Department Records. Wright's official papers contain twenty-one boxes of materials about the case, consisting mostly of post cards, letters, and petitions. See Governor's Papers (Mississippi Department of Archives and History, Jackson, Miss.).

³²*McGee v. State*, 51 So.2d 783; *McGee v. Jones*, 340 U.S. 950; Jackson *Daily News*, May 5, 6, and 9, 1951; New York *Times*, April 1, 1951, p. 79; May 8, 1951, p. 1; May 9, 1951, p. 29; *Daily Worker*, May 7-9, 1951; Mitford, *A Fine Old Conflict*, 160-94.



This Chicago rally on behalf of Willie McGee was one of several held throughout the country in the early months of 1951. *Photo from Patterson, The Man Who Cried Genocide (New York: International Publishers, 1971).*

Many black Americans strongly criticized the proceedings, as did a number of liberals and labor representatives. In France many prominent intellectuals also condemned the execution, and a group organized by Jean-Paul Sartre and American expatriate Richard Wright established a memorial fund for McGee's family. Most major French newspapers, including *Le Monde*, gave extensive coverage to the case and used it as a basis for criticizing American race relations. Newspapers in Belgium, Switzerland, and Italy also denounced the execution. Thus, through its mass campaigns, the CRC had made the McGee case into an internationally known incident symbolizing American racial injustice and rivaling in importance the Scottsboro case of the 1930s. But unlike the ILD in Scottsboro, the CRC had failed to save the life of its client. Moreover, the raging Cold War increasingly made it difficult for the group, because of its Communist ties, to gain more than passive support from many American liberals and moderates for causes which otherwise might have appealed to them. As columnist Max Lerner explained in the *New York Post*, such liberal reluctance to provide more substantial aid to McGee was due to "the fact that

Although it contains several factual errors, a useful personal account of the case can be found in Carl T. Rowan, *South of Freedom* (New York, 1954), 174-93.

the Communists seem to communicate the curse of leprosy to whatever they touch, even to causes good in themselves."³³

This spreading public hostility toward CRC efforts created additional burdens for other potentially promising cases, such as the rape trial of Edward Honeycutt in Louisiana, which local chapters were attempting to develop into major campaigns. In fact, the national mass-action protests concerning Willie McGee and the Martinsville Seven during the first half of 1951 proved to be the zenith of CRC strength. Three events—the North Korean invasion of South Korea in June 1950, the passage by Congress of the Internal Security Act shortly thereafter, and the flight in July 1951 of four top Communist party leaders scheduled to begin prison sentences under their Smith Act convictions—led to greatly expanded governmental repression of the CRC and intensified public hostility. National CRC officials spent much of the next several years in court or in prison, and a financial crunch during the spring of 1952 halted the organization's major campaigns. Heightened repression soon led to the decline and collapse even of strong chapters, while units in the South, weak from the start, were easily destroyed. From early 1952 onward, the CRC was little more than a skeleton organization. Finally in January 1956 a national convention called by a discouraged William L. Patterson voted to disband the organization.³⁴

Despite its demise, the CRC was not a total failure. Through its mass campaigns, it dramatized before a wide national audience the issue of racial discrimination and racial subordination in the South. Through overseas support for its campaigns, the organization awakened foreign intellectuals and political leaders to controversial U.S. racial practices. In so doing, it embarrassed the federal government and in effect "internationalized" the American racial dilemma. The CRC was especially effective

³³John Cogley, "Willie McGee," *Commonweal*, May 25, 1951, p. 158; *Le Monde*, May 3 and 9, 1951; *L'Humanité*, May 2-9, 1951; *Combat*, May 3 and 9, 1951; *Liberation*, May 5, 8, and 9, 1951; American Jewish Committee, *European Reaction to Discrimination in America as Expressed in Press Comments Following the Execution of Willie McGee* (Paris, 1951), mimeographed pamphlet in NAACP Papers; New York *Post*, May 8, 1951; Mary Mostert, "Death for Association," *Nation*, May 5, 1951.

³⁴New York *Times*, July 1, 1952, p. 24; January 28, 1955, p. 11; December 2, 1955, p. 10; January 8, 1956, p. 70; June 14, 1956, p. 41; August 19, 1956, p. 33; *Daily Worker*, January 9, 1956.

in focusing attention on the discriminatory use of the death penalty for rape in the South, thereby encouraging a reconsideration of capital punishment on grounds of unequal treatment. The group's militant tactics presented an alternative to those of the more legalistic NAACP and helped fill the gap between the black direct-action protests of the 1930s and the new wave of such activism that dates from the Montgomery bus boycott. This aggressive approach explains why many, Afro-Americans initially responded favorably to CRC appeals. But blacks themselves were not totally immune to the burgeoning hysteria over Communism. By 1952 most had concluded that association with any Communist-influenced group was unwise and inexpedient, since it would probably result in economic sanctions and possibly cause legal prosecution. Whether the CRC's assertive and sometimes flamboyant tactics necessarily hastened the day of freedom for prisoners is another question. In the Deep South these methods sometimes increased obstinacy, although the NAACP's more cautious tactics did not necessarily prove any more effective.

The Communism issue eventually became an extremely heavy burden for the CRC to bear, especially as the Cold War and domestic Red Scare intensified in 1950 and 1951. The refusal of the NAACP to permit its branches to cooperate with Communist-influenced groups further handicapped the CRC's activities in the South and left the organization politically isolated. The frequency with which chapters staged protests over the Smith Act prosecutions of top Communist party leaders, though certainly courageous, guaranteed that local units would be attacked as Communist, controlled and that their genuine commitment to civil rights would nonetheless be disputed. Southern conservatives and reactionaries responded to CRC activities by further solidifying their belief that racial equality and Communism were intertwined and by exploiting such fears whenever possible for political purposes. This hostile public reaction and economic pressures were sufficient to destroy the CRC in the South. Despite its collapse, however, the group bequeathed to later civil rights activists the example of a militant interracial movement committed to fighting racism through demonstrations and direct action protests as well as

through legal action. Despite its often strident rhetoric, the CRC also helped raise a question which could no longer be ignored: would a nation seeking to lead the democratic world against totalitarianism abroad commit itself to practicing democracy at home?